

7.	30-2024-01395268 Bump vs. Bitetto’s Tow & Service Center, Inc	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Production 3. Motion to Compel Production 4. Motion to Deem Facts Admitted <u>Motion to Compel – Special Interrogatories and Requests for Production, Set Three</u> Plaintiff, Joel Bump (“Plaintiff”), moves for an order compelling Defendant, Sergio Ramirez (“Ramirez”), to provide verified responses to Plaintiff’s Special Interrogatories Set Three, Nos. 53-60, as well as to provide verified responses to Plaintiff’s Requests for Production of Documents, Set Three, Nos. 31-38. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §§ 2030.290(a)-(b); 2031.300(a)-(b).) By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2030.290(a); <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. (Code Civ. Proc. § 2031.300(a).) Here, Plaintiff’s counsel provides that Plaintiff’s Special Interrogatories, Set Three, and Requests for Production of Documents, Set Three, were served on Defendant Ramirez on or about July 29, 2025, and that despite granting multiple extensions to provide responses, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to this discovery. (ROA 329, 334, Declaration of Christopher L. Hendricks, ¶¶ 2-6, Exs. 1-4.) Plaintiff’s Motions to Compel are GRANTED. Defendant Ramirez to serve verified, objection-free responses to Plaintiff’s Special Interrogatories Set Three, Nos. 53-60, and Plaintiff’s Requests for Production of Documents, Set Three, Nos. 31-38 within 30 days. <u>Motion to Compel – Requests for Production, Set One</u> Plaintiff moves for an order compelling Defendant Ramirez to provide verified responses to Plaintiff’s Requests for Production of Documents, Set One, Nos. 1-27. Plaintiff’s counsel provides that Plaintiff’s Requests for Production of Documents, Set One, was served on Defendant Ramirez on or about September 17, 2024, and that despite granting multiple extensions to provide responses and communicating with both Ramirez’s original counsel and associated counsel, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to these Requests for Production. (ROA 340, Declaration of Christopher L. Hendricks, ¶¶ 2-14, Exs. 1-12.) Plaintiff’s Motion to Compel is GRANTED. Defendant Ramirez to serve verified, objection-free responses to Plaintiff’s Requests for Production of Documents, Set One, Nos. 1-27 within 30 days. (Code Civ. Proc. § 2031.300(a)-(b).) ///
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		<u>Motion to Deem Requests for Admission, Set One, Admitted</u> Plaintiff Bump moves for an order deeming Plaintiff's Requests for Admission, Set One, Nos. 1-39 <i>admitted</i> as to Defendant, Sergio Ramirez. Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc. § 2033.280(a)-(b).) The court shall deem the matters admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).) Like Plaintiff's motion to compel responses to Requests for Production, Set One, Plaintiff's counsel provides that Plaintiff's Requests for Admissions, Set One was served on Defendant Ramirez on or about September 17, 2024, and that despite granting multiple extensions to provide responses and communicating with both Ramirez's original counsel and associated counsel, to date, i.e., January 15, 2026, Defendant Ramirez has not provided responses to these Requests for Production. (ROA 353, Declaration of Christopher L. Hendricks, ¶¶ 2-14, Exs. 1-12.) No opposition has been filed and it appears that Defendant Ramirez has not served a proposed response to Plaintiff's Requests for Admission, Set One. As such, Plaintiff's Motion to Deem Requests for Admission, Set One, Nos. 1-39 admitted as against Defendant Ramirez is GRANTED. Pursuant to Code of Civil Procedure section 2033.280(c), "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion." Plaintiff's motion to deem requests for admission admitted states, "To the extent any sanctions are awarded by the Court, Plaintiffs request that they be issued to one of the applicable trial lawyers associations operating in the area like Orange County Trial Lawyers Association ('OCTLA') or Consumer Attorneys of California ('CAOC')." (ROA 337, Motion, 4:15-18.) Plaintiff does not cite to any authority for sanctions being awarded to anyone but the party that incurred the reasonable fees/expenses. However, as a monetary sanction is mandated, the Court awards a \$50 monetary sanction against Defendant Ramirez, to be paid to Plaintiff's counsel within 30 days. Plaintiff to give notice of all motions.
8.	30-2023-01360493 Lopez vs. Right Time Transport, LLC	1. Case Management Conference 2. Motion for Terminating Sanctions 3. Order to Show Cause re: Failure to Appear Plaintiff, Albert Lopez, moves for an order for terminating sanctions as to Defendants, Right Time Transport, LLC and Andy Tran, and for an award of monetary sanctions against